more complicated in emerging economies where fixed and stable jobs are becoming increasingly fewer.

Social Security Code Merely Expands the Intent

The Social Security Code 2020 not only consolidates the existing nine laws dealing with social security but expands the coverage of workers for benefits. In terms of intent, the Code is progressive. However, while it expands eligibility of labour for additional coverage and benefits, the government needs to develop programmes and schemes to do the needful. The history of social security legislations, especially those that attempt to provide coverage to workers outside the large and organized sector, is testament that intended benefits are not translated into action. Therefore, the key to the success of the Social Security Code lies in its implementation.

The Social Security Code materially expands coverage and benefits in five principal ways. First, it allows non-covered establishments to voluntarily join Employees' Provident Fund (EPF) and Employees' Pension Scheme (EPS). This will expand the choice of non-covered establishments to choose between National Pension Scheme (NPS) or Employees Provident Fund Organisation (EPFO), if they decide to provide such retirement savings-related benefits to employees. Second, the Code defines new forms of employment, such as aggregator, gig worker and platform worker, to include them within the ambit of the law. It also defines an establishment, without adding the condition of a minimum ten employees. Thus, in law, it includes all establishments in the country within its scope. Third, the Code seeks to establish an electronic system of registration of establishments. This has the potential to create the largest database of establishments in the country. Fourth, it makes employees on fixed-term contracts eligible for gratuity. Fifth, the Code provides for registration of every unorganized worker, including gig workers and platform workers, on the basis of self-declaration electronically.